

Smt. Usha Shukla v. State of U.P. And 3 Others

High Court of Judicature at Allahabad · Division Bench · 5 March 2025 · 2025:AHC:31705-DB · WRIT - C No. - 6517 of 2025 · **Writ disposed of; 6.5 objection to be decided in six weeks; disconnection stayed.**

HEADNOTE

Where a consumer's objection under clause 6.5 of the Electricity Supply Code, 2005 remains undecided, the High Court directed the authority to decide it preferably within six weeks and stayed disconnection of the petitioner's supply until that decision.

FACTUAL SUMMARY

Smt. Usha Shukla filed a writ petition before the Allahabad High Court alleging that an objection she had raised under clause 6.5 of the Electricity Supply Code, 2005 had not been decided by the concerned electricity authority. Counsel for the petitioner and for respondent nos. 2 to 4 were heard. The petition did not invite adjudication of the underlying billing dispute; the grievance was the pending 6.5 objection and the risk that the petitioner's electricity connection would be disconnected while that objection remained unattended.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending 6.5 objection — time-bound decision; disconnection stayed

HOLDING

Where the petitioner's objection under clause 6.5 of the Electricity Supply Code, 2005 has not been decided, the authority concerned is directed to decide that objection expeditiously, preferably within six weeks; until the 6.5 objection is decided, the petitioner's electricity connection shall not be disconnected. The writ petition is disposed of on those directions. ¶ 2-5

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Where a consumer's objection under clause 6.5 of the Electricity Supply Code, 2005 remains undecided, the High Court directed the authority to decide it preferably within six weeks and stayed disconnection of the petitioner's supply until that decision. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 OBJECTION

The Court did not examine or decide the substance of the petitioner's billing objection. ¶ 2-3